

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA**

In the matter of an Appeal in terms of
Section 331 (1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri Lanka.

The Democratic Socialist Republic of Sri
Lanka.

COMPLAINANT

Vs.

**CA Appeal No.CA/HCC/0066/2024
High Court of Puttalam
Case No. HC/96/2021**

Mohomed Ismail Mohamed Irshad
Karikattiya,
Madurankuliya.

ACCUSED

AND NOW

Mohomed Ismail Mohamed Irshad
Karikattiya,
Madurankuliya.

ACCUSED - APPELLANT

Vs.

The Hon. Attorney General,
Attorney General's Department,
Colombo 12.

COMPLAINANT- RESPONDENT

Before: **Amal Ranaraja J.**

&

Dr. Sumudu Premachandra J.

Counsel: Asanka Mendis with Udari Weerakoon for the Accused-Appellant.

Dishna Warnakula DSG for the Respondent.

Accused-Appellant is produced via zoom platform by the Prison Authorities.

Written Submissions: By the Accused-Appellant filed on 28/08/2024.
By the Respondent filed on 28/10/2024.

Argument On : 04/08/2026.

Judgement On : 18/09/2026.

Dr. Sumudu Premachandra J.

1] The Accused-Appellant was indicted in the High Court of Puttalam for committing 3 counts of rape from 01/01/2013 to 31/12/2013. However, the indictment was amended later including the following charges;

1. Committing Grave Sexual Abuse by performing intercrural sex which is an offence punishable under Section 365 B (2) (b) of the Penal Code as amended;
2. Rape which is punishable under Section 364 (3) of the Penal Code;
3. Rape which is punishable under Section 364 (3) of the Penal Code.

2] After pleading not guilty to the charge, the Prosecution called PW 01,02,04,05 06,07 and PW 09 as oral testimonies and P1 and P2 were marked as documentary evidence. PW 01 narrated her story that the Accused is the younger brother of her mother. At the material time, her mother was abroad, she was with her father and the Accused. She cannot remember the exact date, however, she stated that the incident took place 5 or 6 months after her mother left abroad. She was schooling and was in grade 6 or 7. She said she lodged the police complaint after she faced this incident 2 ½ years ago. She was assaulted thrice by the Accused-Appellant. However, she said that the first time when she was to be sexually assaulted her father came into the house and the Accused could not assault her. One month after the first incident, the Accused came to her house. She was alone at home. Then, she was taken to the hall of the house and slanted upwards on the floor and the Accused performed intercrural sex for 2 minutes and ejaculated between her thighs. Third time, the Accused asked to come to his house, however, anything did not happen. The victim says that she was afraid of the Accused instinctively. She said that “එයා දැක්කහම කොහොමත් බය වෙනවා”. The incident took place when the Victim was 13 years old and she gave evidence at the age of 21 and she was married. She said in the evidence apart from this Accused, she was sexually assaulted by Janus and Aroos. In the cross examination she said that all incidents were jumbled and she cannot remember. She adduced that “මට ඒවා දැන් පැටලිලා තියෙන්නේ. ඔක්කොම මට අමතක වෙලා තියෙන්නේ.”

3] After a lengthy trial, the Accused was convicted for count 1 and sentenced to 15 years of rigorous imprisonment on 08/02/2024. He was also fined Rs. 10,000/- in default 3 months simple imprisonment and ordered to pay Rs. 200,000/- as compensation to the Victim, in default one-year simple imprisonment. Being aggrieved to the said conviction and sentence, the Accused Appellant prefers this appeal on the following grounds;

1. The amended indictment is illegal and irrational and therefore the Accused cannot be convicted based on the amended indictment.

2. No Prosecution can be commenced and/or maintained based on the amended indictment.
3. The Prosecution has failed to prove the time period in the indictment beyond reasonable doubt. The year is at least not proved.
4. The alleged act described by the Prosecutrix would not be sufficient to establish the offence of grave sexual abuse.
5. The Accused was not given an opportunity to defend the charge under Section 365 B 2 (b) and grave prejudice has been caused to the Accused.
6. The Prosecution has failed to satisfy the court on the test of consistency, spontaneity, probability, and interse and perse contradictions.
7. The Prosecutrix is not a credible witness.

4] The 1st and 2nd grounds of appeal are no prosecution can be maintained on illegal and irrational amendments made to the indictment. Initially, there were 3 rape charges under section 364 (2) of the Penal Code. After the amendments the 1st count was amended as an offence punishable under section 365 B (2) (b) of the Penal Code and the 2nd and 3rd counts were amended as offences punishable under section 364 (3) of the Penal Code.

5] Section 365 B (2) (b) says;

“Whoever- Commits grave sexual abuse on any person under eighteen years of age, shall be punished with rigorous imprisonment for a term not less than seven years and not exceeding twenty years and with fine and shall also be ordered to pay compensation of an amount determined by court to the person in respect of whom the offence was committed for the injuries caused to such person.”

6] Section 364 (3) says;

“Whoever commits rape on a woman under sixteen years of age and the woman stands towards the man in any of the degrees of relationships enumerated in section 364A shall on conviction be punished with rigorous imprisonment, for a term not less than fifteen years and not exceeding twenty years and with fine.”

7] The Appellant was initially charged with 3 counts of rape, later, it was amended to one count of grave sexual abuse and 2 counts of rape. The Penal Code illustrates what is rape and grave sexual abuse as follows;

“363. *A man is said to commit 'rape' who enactment has sexual intercourse with, a woman under circumstances falling under any of the following descriptions: -*

(a) without her consent even where such woman is his wife and she is judicially separated from the man;

(b) with her consent, while she was in lawful or unlawful detention or when her consent has been obtained, by use of force or intimidation, or by threat of detention or by putting her in fear of death or hurt;

(c) with her consent when her consent has been obtained at a time when she was of unsound mind or was in a state of intoxication induced by alcohol or drugs, administered to her by the man or by some other person;

(d) with her consent when the man knows that he is not her husband, and that her consent is given because she believes that he is another man to whom she is, or believed herself to be, lawfully married;

(e) with or without her consent when she is under sixteen years of age, unless the woman is his wife who is over twelve years of age and is not judicially separated from the man.”

....

“365 B (1) Grave sexual abuse is committed any person who, for sexual gratification, does any act, by the use of his genitals or any other part of the human body or any Instrument on any orifice or part of the body of any other person, being an act which does not amount to rape under section 363, in circumstances falling under any of the following descriptions, that is to say :-

(a) without the consent of the other person;

(aa) with or without the consent of the other person when the other person is under sixteen years of age;

(b) with the consent of the other person while such other person was in lawful or unlawful detention or where that consent has been obtained, by use of force, or intimidation or threat of detention or by putting such other person in fear of death or hurt;

(c) with the consent of the other person where such consent has been obtained at a time the other person was of unsound mind or was in a state of intoxication induced by alcohol Of drugs.”

8] The Appellant was convicted for grave sexual abuse and acquitted from rape charges. According to Section 365 B (1) the offence of Grave Sexual Abuse is committed by any person who, for sexual gratification does any act by the use of his genitals or any other part of the human body or any instrument on any orifice or part of the body of any other person being an act which does not amount to rape.

9] For instance, Section 363 of the Penal Code sets out rape under five specific scenarios, being sexual intercourse without consent even when the woman is his wife and is judicially separated from the man (marital rape), sexual intercourse with consent where consent has been obtained by use of force or threats or intimidation or by putting her to fear of death or hurt, or while the woman is in detention etc. Similarly, Section 365 (B) creates the offence of grave sexual abuse and provides that any act done for sexual gratification using genitals or any other part of the human body, or any instrument on any orifice or part of the body of another person, not amounting to rape under Section 363,

constitutes grave sexual abuse if it is committed; (a) without the consent of the other person; (b) with the consent of the other person where the consent has been obtained by use of force, threat, or intimidation etc.

10] Though, rape and grave sexual abuse are from the same class of offences which is plainly the offences against the body, they are not cognate offences since the *Mens Rea* and *Actus Reus* are different. These two offences do not show *Mens Rea* in the fault element patently. Thus, it is hard to know what the mental element in these offences are.

11] Our Penal Code does not specify the *Mens Rea* of these offences. However, another Jurisdiction specifies the *Mens Rea*. In section 1 of the Sexual Offences Act 2003, UK provides that;

*“A person (A) commits rape if a) he intentionally **penetrates the vagina, anus or mouth of another person** (B) with his penis, b) B does not consent to the penetration, and c) **A does not reasonably believe that B consents.***

(2) Whether a belief is reasonable is to be determined having regard to all the circumstances, including any steps A has taken to ascertain whether B consents.” [Emphasis is added]

12] It can be seen that in the above offence ‘consent’ forms part of both the *Actus Reus* (that B does not consent to the penetration) and the *Mens Rea* (that A does not reasonably believe that B consents and A does not reasonably believe that B consents.) of the offence. Thus, ‘lack of consent’ and knowledge of that the victim did not consent reasonably, is a key ingredient in sexual offences such as rape and grave sexual abuse, which forms the *Mens Rea*. The *Mens Rea* for both rape and grave sexual abuse is the knowledge that the Accused was aware of whether the victim did not consent to the impugned sexual act. Additionally, sexual gratification plays a role in grave sexual abuse. Both, knowledge of consent and intention to have sexual gratification are unique to each case, can be drawn by the act of the Accused. In those conditions, the *Actus Reus* is, in the case of rape is virginal penetration and for grave sexual abuse is the particular act which was performed. For example, rubbing a head of a girl and

squeezing the breast is *Actus Reus*, the former does not indicate or prove sexual gratification, but later proves it. It is notable that in contrast to the UK law, under the Sri Lankan law it did not consider digital penetration, oral or anal penetration as rape. Those acts fall under grave sexual abuse. However, in the UK, those conditions are treated as rape. In UK, there is no charge called grave sexual abuse, instead of a single category like "grave sexual abuse," UK law breaks serious sexual misconduct down into distinct categories, the Statute precisely defines criminal charges—such as rape (Section 1)¹, sexual assault by penetration (Section 2)², and sexual assault (Section 3)³.

13] However, the new amended sections 363 and 365 (B) of the Sri Lankan Penal Code outlines specific circumstances in which rape and grave sexual abuse respectively, are committed even if the complainant's consent is present, such as where the woman is in lawful or unlawful detention, consent is obtained by use of force or intimidation or by threats of detention, or by putting in fear of death or hurt, or when the woman is of unsound mind etc. When considering the circumstances, it shows that the Accused does not reasonably believe that the Victim consents to the act, the *Mens Rea* is proved.

14] It is to be noted that mere participation does not involve consent. In **Inoka Gallage Vs. Kamal Addararachchi and another** [2002] 1 SLR 307, it was held that;

“Consent on the part of the woman as a defence to an allegation of rape requires voluntary participation. A woman is said to consent when she freely agrees to submit herself. It is always a voluntary and conscious acceptance of what is proposed to be done by another and occurred in by the former. There is a difference between consent and submission to sexual

¹ Section 1(1) of Sexual Offences Act 2003, UK “(1)A person (A) commits an offence if—(a)he intentionally penetrates the vagina, anus or mouth of another person (B) with his penis, (b)B does not consent to the penetration, and (c)A does not reasonably believe that B consents.”

² Section 2 of Above Act, Assault by penetration 2(1) “A person (A) commits an offence if— (a)he intentionally penetrates the vagina or anus of another person (B) with a part of his body or anything else, (b)the penetration is sexual, (c)B does not consent to the penetration, and (d)A does not reasonably believe that B consents.”

³ Section 3(1) above Act, “3(1)A person (A) commits an offence if—(a)he intentionally touches another person (B), (b)the touching is sexual, (c)B does not consent to the touching, and (d)A does not reasonably believe that B consents”.

intercourse. **Every consent involves submission, but the converse does not follow and a mere act of submission does not involve consent**

[Emphasis is added]

15] In **Mahalakotuwa v. The Attorney General** [2011] 2 B.L.R 406, His Lordship D.S.C Lecamwasam, J. differentiates the rape, grave sexual abuse and 345 of the Penal Code⁴ as;

“On a plain reading of the above section it is clear, that the section envisaged a grave situation which falls short of rape. It cannot be a mere ‘Touch’. It has to be much more serious than a touch and to come within the ambit of ‘Grave Sexual Abuse’ it must be of a very high degree, so serious and grave in nature that it can only fall short of Rape, but must surpass situations expected in section 345,365 and 365A”.

16] In **DIRECTOR OF PUBLIC PROSECUTIONS (RESPONDENT) v. MORGAN (APPELLANT)**, [1976] AC 182] in the House of Lords, it was held that as long as a belief was genuine and honest pertaining to consent, it did not have to be a reasonable belief for a defence to rape. The focus was on the *Mens Rea* of rape; there had to be an intention to commit the crime, as well as a lack of consent. There was a requirement to know if the woman had not consented or reckless to whether she did. Despite this decision, the conviction was upheld, as no reasonable jury would have found them not guilty, even if directed correctly by the judge. The complainant had clearly communicated her lack of consent for sexual activity in this case. After this case, in 2003, the consent must be reasonably belief for a defence, was enacted.

⁴ Section 345 of the Penal Code “Whoever, by assault or use of criminal force, sexually harasses another person, or by the use of words or actions, causes sexual annoyance or harassment to such other person commits the offence of sexual harassment and shall on conviction be punished with imprisonment of either description for a term which may extend to five years or with fine or with both and may also be ordered to pay compensation of an amount determined by court to the person in respect of whom the offence was committed for the injuries caused to such person.

Explanation

1. Unwelcome sexual advances by words or action used by a person in authority, to a working place or any other place, shall constitute the offence of sexual harassment.
2. For the purposes of this section an assault may include any act that does not amount to rape under section 363 or grave sexual abuse under section 365B.
3. ‘injuries’ includes psychological or mental trauma.”

17] Our law demands that the fault element (*Mens Rea*) must also be proved by the Prosecution, where the fault or *Mens Rea* is not proved, the Accused can raise the defence of mistake in section 72 of the Penal Code⁵, stating that he honestly and reasonably believed that the Victim was consenting.

18] The above ingredients of rape and grave sexual abuse were discussed in this judgement to consider whether by amending the indictment the Accused was misled and he was denied a fair trial. I now consider the provisions and law relating to amending the indictment or charges.

19] Section 167 of the Code of Criminal Procedure Act No. 15 of 1979 enacts as follows;

*“1. Any court may alter any indictment or charge **at any time before judgment is pronounced** or, in the case of trials, before the High Court by a jury, before the verdict of the jury is returned.*

2. Every such alteration shall be read and explained to the accused.

*3. The **substitution of one charge for another in an indictment or the addition of a new charge to an indictment** and in a Magistrate’s Court the substitution of one charge for another or the addition of a new charge **shall be deemed to be an alteration of such indictment** or charge within the meaning of this section.”* [Emphasis is added]

20] In plain text, it is seen that the indictment can be amended before the judgement is pronounced or delivery of the verdict by the jury. The section itself shows that substitution of one charge for another in an indictment or the

⁵ **Section 72:** “Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be justified by law in doing it” (Good Faith means: **Section 51**, “Nothing is said to be done or believed in good faith which is done or believed without due care and attention”)

addition of a new charge to an indictment is permissible. The condition is that such alteration shall be read and explained to the Accused.

21] In **John Perera v. Weerasinghe** 53 NLR 158 the court held that; “An amendment of a charge should not be refused by the judge unless it is likely to do substantial injustice to the accused.”

22] In **Doole v. The Republic of Sri Lanka** [1978-1979] 2 SLR 33 the court held that; “as a rule an amendment to an indictment should be allowed if it would have the effect of convicting the guilty or securing the acquittal of the innocent, but it should not be allowed if it would cause substantial injustice or prejudice to the accused.”

23] In **Hiththatcharilage Gnanaratna alias Shantha Mama vs The Hon. Attorney General**, CA/HCC/ 0170/2020, decided on 10/03/2023, His Lordship P. Kumararatnam, J. noted in relation to amendment of indictments;

“In a criminal trial the basic foundation is the charge. By charging, an accused is provided information as to the nature of the allegation levelled against him. The charge must identify the act committed by the accused, the law alleged to have been violated by him and particulars pertaining to the alleged offence must be specified in the charge. It is the profound duty of a prosecutor to frame the charge/s after careful consideration of evidence available in the case at the time of drafting the charge. The requirements of a valid charge are set out in Sections 164 and 165 of the Code of Criminal Procedure Act No.15 of 1979.”

24] In the instant case, three people were engaging in sexual activities with the Victim in different times spanning 2 ½ years and it is hard to specify the act unless the Victim specifies what act was performed on her by the Accused. Thus, I am of the view that a criminal charge can be amended to conform to the evidence. In almost all legal systems, Prosecutors have the authority to alter, add, or reduce charges to ensure that the indictment accurately reflects the factual reality of what happened, provided that the changes do not unfairly prejudice the Defendant's right to a fair trial.

25] According to section 165 of the Criminal Procedure Code, if the trial has already started and the witnesses or evidence reveal a mismatch with the original charge, I am of the view that the Prosecution can request an amendment to confirm to the evidence. This can usually happen at any time before the judge or jury renders a final verdict. It is my understanding that the indictment or charge sheet is a living thing, and it cannot be static. Once the indictment or charge sheet is amended, and if the story goes against the first complain, it becomes unreliable. Then, the defense can elicit the contradiction and draw omission to the court, to discredit the witness, thus, allowing an amendment confirming the evidence would not harm the Accused.

26] It should be noted when allowing the amendment, the fair trial protections must be given for the Accused. To prevent the Prosecution from blind-siding the Defense, courts can allow the witness to recall and grant postponement (adjournment) enabling the Accused to prepare for the new charge. It is to be remembered that while securing a fair trial to the Accused, the justice should also equally be done to the Victims.

27] I now consider, whether fair trial was denied to the Accused Appellant. The indictment was amended on 12/12/2022. The proceedings related to the amendment of the indictment is as follows;

“පැමිණිල්ල අධිචෝදනා පත්‍රය සංශෝධනය කිරීමට අවසර අයැද සිටියි. පැ . සා . **01** මේ වන විටත් මූලික ශාක්ෂි ලබාදෙමින් සිටින බැවින් එකී අයැදීමට ඉඩදෙමි.

(අධිචෝදනාව සංශෝධනය කරයි.)

අධිචෝදනා පත්‍රයේ සංශෝධිත පලවන චෝදනාව වූදිනට ද්‍රවිඩ භාෂාවෙන් අධිකරණ භාෂා පරිවර්තක ලවා කියවා පහදා දෙමි.

වූදින එකී චෝදනාවට තමා වරදිකරුද නිවැරදිකරුද යන්න විමසමි.

වූදින සංශෝධිත චෝදනාවට තමා "නිවරදිකාරු " බවට උත්තරවද ලබාදෙයි.

පැ .සා .**01** නැවත සාක්ෂියට කැඳවයි”

28] It is seen that the Appellant was represented by a counsel and they have not objected to the amendment. In this scenario, it is seen that the amendment to the indictment has been waived and it cannot be done at the appellate stages as it was not taken at the trial. The learned trial judge was cautious when allowing

the amendment as the PW 01 was still giving the evidence, it was allowed. It is seen that the PW 01 had not concluded the evidence in chief thus, no prejudice had been done to the Accused as the Accused had ample time to put forward his defence according to the charges. In the above circumstance, I hold that the amended indictment is legal and tenable. Further, the ground of appeal that the Accused was not given an opportunity to defend the charge under Section 365 B 2 (b) and grave prejudice has been caused to the Accused cannot be reasonably accepted, thus it is rejected.

29] The other grounds of appeal are interwoven and are considered together. The Appellant argues that the date of offence is not proved by the Prosecution. The Victim said that she cannot remember the exact dates. In fact, she was sexually assaulted by the adults and was a child, 13 years of age. However, she adduced at the second time the witness committed grave sexual abuse on her by doing intercrural sex. That was the first charge. It should be noted that the date is not an ingredient of an offence. The date facilitates to form a defence whether the Accused was elsewhere at the material time. In this case, the Appellant had nowhere taken defence of alibi under section 126A of the Criminal Procedure Code. The Victim, PW 01 had elaborated what the Accused did to her. It contains the ingredients of grave sexual abuse. It is the learned trial judge's duty to decide whether the witness is telling the truth and whether she is credible. Every formal charge must state the time and place of the alleged offence to give the Accused notice of what they are being charged with. However, the exact hour or precise day is not always rigidly stated and proved. If the Prosecution establishes that the offence occurred reasonably close to the mentioned timeframe, the discrepancy is usually permitted and curable. The test is whether the Accused was misled by not proving the date of the offence. Unlike curfew offences, such as violating bail conditions, violating road rules, the date must be mentioned however, it is *Sine Qua Non* to prove a charge.

30] The above position was accepted by in **Director General of Commission to Investigate Allegation of Bribery or Corruption v. Punchi Banda and another** CA (PHC) APN No. 142/2014 decided on 12/09/2017 and held that;

*“There is no provision in law which makes it mandatory for the prosecution to specify a particular date as a date of offence in a charge. In other words it is legally permissible for the prosecution to have a time period, **instead of specified date**, as the time of offence in a charge. Of course, such information provided by **the prosecution must be reasonably sufficient to give notice** of the matter to the accused.”* [Emphasis is added]

31] In **M.G. Premadasa v. The Attorney General** CA 261/2009 decided on 26/05/2014, the Court held that the date is not an ingredient of a charge as follows;

*“On the question of vagueness of the incident regarding the date of the incident and the reference made therein to the period, we cannot see any prejudice being caused to the accused party, on the aspect **since it was not an incident** but the alleged acts had been committed on several dates, which shows repetition and continuation of acts.”* [Emphasis is added]

32] Thus, the ground that the date was not clearly proved and that the Accused was misled cannot be accepted. However, evidence proves the Accused was living in the close vicinity of the material time, had access to the victim PW 01 and PW 01 reasonably explained and adduced evidence from the witness box about what had happened to her which clearly creates substantive evidence against the Accused.

33] When considering whether the alleged act described by the Prosecutrix would not be sufficient to establish the offence of grave sexual abuse, the Victim clearly asserted that the Accused placed the Victim upwards in the hall of the house, he got onto her and placed his penis between her thighs. The moment he placed his penis between her thighs, the ingredients of the offence, grave sexual abuse, are completed. It further shows, it was done for sexual gratification. She said that the Accused ejaculated between her thighs after performing the act, that she felt a watery thing in her thighs further shows the pinnacle of sexual gratification. Thus, I hold that the Prosecution has proved and established the 1st charge beyond reasonable doubt.

34] The ground that the Accused was not given an opportunity to defend the charge under Section 365 B 2 (b) and grave prejudice has been caused to the Accused, cannot be sustained as noted above, the amendment was made before the cross examination of PW 01, the victim. The Accused was given fair trial and allowed to discredit the witnesses of the Prosecution.

35] When considering the ground that has the Prosecution failed to satisfy the court on the test of consistency, spontaneity, probability, and interse and perse contradictions, there is no material contradictions or omissions which go to the root of the case. As noted, she was subjected to sexual harassments from 3 grown up males spanning years after her mother went abroad. P2, Medical History shows that she was subjected to sexual harassments by Aroos, Irshad (This accused) and Janoos. The findings of the JMO are clear that she was not a virgin, her vaginal orifice is dilated and hymen was ruptured at 6, 2 and 4 o' clock positions. The doctor further notes her anal orifice was also dilated and reduced sphincter tone. Thus, this shows that the Victim was subjected to sexual harassment repeatedly for a long period of time. It is natural that these incidents can be jumbled. Unlike a single act, it was a series of acts. She was 14 years old at the medical examination. The victim explained these series of sexual acts as “මට ඒවා දැන් පැටලිලා තියෙන්නේ. ඔක්කොම මට අමතක වෙලා තියෙන්නේ.” Which is a reasonable explanation. The witness cannot recall the incidents in photographic memories as stated in **Bhoginbhai Hirjibhai V State of Gujarat** AIR 1983 SC 753. Thus, I hold the Prosecutrix is a credible witness.

36] The Accused in the dock statement denied the charges and said that there was an animosity between her father and the Accused, because of that she has fabricated the story. However, in the cross examination, the animosity part was not suggested to the witness. The Accused suggested that he did not commit the offence. The witness said that “එයා කළා, ඕනනම් එයාගෙන් අඩගහල අහන්න”. Being a rape Victim or sexual harassment Victim is an ordeal. The witness box is the loneliest place and she has to recall every unpleasant thing which occurred. She would be victimized for the second time possibly in public. Thus, the

contradictions and omissions should go to the root of the case, as plethora of judgments held minor contradictions cannot be treated to discredit the witness. In **Sumith Kumara Vs. Attorney General** [2012] 2 Sri.LR 311 , this rule was emphasised as;

“Overdue importance cannot be given to minor discrepancies. Discrepancies which do not go to the root of the matter and shake the basic version of the witness, therefore cannot be attached with undue importance.”

37] It was held in the case of **State of Punjab Vs. Gurmeet Singh and others** (1996) 2 SCC 384 that;

*“The Court must, whilst evaluating evidence, remain alive to the fact that in a case of rape, **no self-respecting woman would come forward in a court just to make a humiliating statement against her honour such as it involved in the commission of rape on her.**”* [Emphasis is added]

38] The word “එයා කළා, ඕනනම් එයාගෙන් අඩගහල අහන්න” shows everything in this case. In the case of **Chaminda Vs. The Republic** (2009) 1 SLR 144, it was held;

“An appellate Court will not lightly disturb the findings of a trial judge who has come to a favourable finding with regard to the testimonial trustworthiness of a witness whose demeanor and deportment had been observed by a trial judge. Findings of primary facts by a trial judge who hears and sees witnesses are not to be lightly disturbed on appeal.”

39] Further, it should be noted that there is not mathematical proof of charges in criminal matters for hundred percentage. What is beyond reasonable doubt is well set and articulated in **Miller vs Minister of Pensions** [1947] 2 All. E R 372, by Lord Denning summarized is as follows;

*“It need not reach certainty, but it must carry a high degree of probability. **Proof beyond reasonable doubt does not mean proof beyond a shadow of doubt.** The law would fail to protect the community if it permits fanciful possibilities to deflect the course of justice.” [Emphasis is added]*

40] The learned trial judge had considered all the aspects of the case and I cannot see her findings are perverse. The Appellant did not contest that the sentence is excessive. When the incident occurred, the Victim was 13 years of age and the Accused was 29 years old and is the brother of the mother. When considering the sentencing order dated 08/02/2024, the reasons for the sentence is well founded and are therefore acceptable. In the above circumstances, the conviction and sentence of this case is affirmed, however, the sentence shall run from the date of conviction, i.e. 08/02/2024.

Appeal is dismissed. No Costs.

JUDGE OF THE COURT OF APPEAL

AMAL RANARAJA J.

I agree

JUDGE OF THE COURT OF APPEAL